

to Dismiss. The March 17, 2026 hearing on Motion to Dismiss was taken off calendar. Thus, this motion is MOOT. Moreover, the motion is fails to satisfy the required elements for a motion to strike under Code of Civil Procedure section 436 because section 436 is applicable only to a complaint, cross complaint, or pleading. (Code Civ. Proc., §§436, 435, subd. (a).) Defendant's motion to strike is not filed in response to a pleading or the Complaint.

5.

CASE #	CASE NAME	HEARING NAME
CVME2514611	SIGEL VS SIGEL	MOTION TO EXPUNGE/DECLARE INVALID NOTICE OF PENDENCY OF ACTION (LIS PENDENS)

Tentative Ruling: Motion is denied. Request for Attorney's fees denied.

A real property claim is any cause of action which would affect title to, or right to possession of, specific real property, or the use of an easement identified in the pleading. (Code Civ. Proc., § 405.4.)

Plaintiff's Complaint seeks to partition by sale of the Property against all Defendants. (Compl., ¶¶21, 25-34.) The ownership is based on tenancy in common. (*Id.* at ¶¶16, 19.) Plaintiff is unsuccessful in coming to an agreement with Defendant on the disposition of the Property. (*Id.* at ¶20.) Such claim directly affects the title to and use of the Property. This constitutes a "real property claim" within the statutory definition under section 405.4.

Defendant contends the Complaint's causes of action principally seeks monetary relief and does not plead facts demonstrating Plaintiff's present entitlement to transfer or alteration of recorded title. (Jerry Decl., pg. 2: 11-14.) However, a lis pendens is proper if the pleading contains at least one qualifying real property claim. (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 650.) The claim for partition is sufficient.

Probable Validity of the Claim - The lis pendens claimant bears the burden of establishing the "probable validity" of the real property claim by a preponderance of the evidence, that it is more likely than not that the plaintiff will obtain a judgment against the defendant on the claim. (Code Civ. Proc., §§ 405.3, 405.32; *J & A Mash & Barrel, LLC v. Superior Court (Tower Theater Properties)* (2022) 74 Cal.App.5th 1, 32-33.)

If conflicting evidence is presented, the judge must weigh the evidence in deciding whether plaintiff has sustained its burden. This "requires a minitrial on the merits for making a probable validity finding" rather than conducting a quasi-demurrer-like analysis. (*De Martini v. Superior Court (Gupta)* (2024) 98 Cal.App.5th 1269, 1279-1280.)

Defendant Austin Sigel submits a declaration stating he does not have any ownership interest in the Property and that his name was placed on title to the Property for non-ownership purposes, "including assistance related to financing, and not to reflect any true ownership interest."

Defendant Jerry A. Sigel testified that Plaintiff is on recorded title. (Jerry Decl., pg. 2:3.)

Plaintiff is the co-owner of the Property and the owner of an undivided one-half interest pursuant to a Grant Deed dated February 29, 2016. (Compl., ¶17; Ragonese Decl., ¶4, Exh. 1.) In reviewing the February 29, 2016 grant deed attached to Ragonese's

declaration, it shows Plaintiff granted the Property to herself and Defendant Jerry A. Sigel as joint tenants. (Ragonese Decl., Exh. 1.) Jerry and Austin do not present evidence disputing Plaintiff as a title owner. Plaintiff has a statutory right to partition as a title owner. (Code Civ. Proc., § 872.710, subd. (b) [“partition as to concurrent interests in the property shall be as of right unless barred by a valid waiver”].) There is no evidence that Plaintiff waived her right to partition Attorney’s Fees – Expunge Lis Pendens.

The prevailing party on a motion to expunge is entitled to attorney’s fees unless the other party acted with “substantial justification” or that an award would be unjust. (Code Civ. Proc., § 405.38.) Here, although Plaintiff is the prevailing party, Defendant acted in substantial justification given the action is affecting his residence, property rights, financing options, and ability to pursue a buyout. (Reply, ¶13; Jerry Decl., pg. 2:16-19.)

6.

CASE #	CASE NAME	HEARING NAME
CVME2600233	SIGEL VS SIGEL	DEMURRER

Tentative Ruling: Request for Judicial Notice Granted. Special Demurrer for Uncertainty overruled. Special Demurrer (Plea in Abatement) is overruled. General Demurrer overruled on First and Second Causes of Action and sustained on the Third Cause of Action with 10 days leave to amend. Request for Costs denied.

Special Demurrer – Uncertainty - A special demurrer for uncertainty lies only where the complaint is so poorly drafted that the defendant cannot reasonably respond. That is, the defendant cannot reasonably determine what issues must be admitted or denied or what claims are asserted against him. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Where it is alleged that a pleading is uncertain, the movant must specify how or why the pleading is uncertain, and where such uncertainty appears in the face of the pleading under attack. (*Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [overruled on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328].) Defendant’s special demurrer for uncertainty disputes facts stated in the Complaint, and as such, it cannot be “so ambiguous or unintelligible the defendant cannot reasonably respond.”

Special Demurrer – Statutory Plea in Abatement - A demurrer can be used only to challenge defects that appear on the face of the pleading under attack, or judicially noticeable matters outside the pleading. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

A demurrer lies when another action is pending between the *same parties* on the *same cause of action*. (Code Civ. Proc., § 410.30, subd. (c); *Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 787 (“*Plant Insulation*”).) The statutory plea in abatement rests on “narrow grounds” as it requires “absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions.” (*Plant Insulation, supra*, 224 Cal.App.3d at 789, emphasis added.) “The ‘underlying theory of the plea of another action pending is that the first action will normally be an ample remedy, and the second action...is therefore unnecessary and vexatious.’” (*Cal. Union Ins. Co. v. Trinity River Land Co.* (1980) 105 Cal.App.3d 104, 109.) “In determining whether the causes of action are the same for purposes of plea in abatement, the rule is that such a plea may